ARTICLE 29. To see if the Town will vote to raise and appropriate or transfer from free cash or other available funds, a sum of money to be deposited into the Town's Special Education Reserve Fund established pursuant to Massachusetts General Laws Chapter 40, Section 13E, to pay for unanticipated or unbudgeted costs of special education, out-of-district tuition or transportation; or take any other action in relation thereto.

(School Committee)

MOTION: MOVED AND SECONDED that the Town raise and appropriate Four Hundred Thousand Dollars ($400,000) or transfer from Free Cash to the Special Education Reserve Fund, established pursuant to Massachusetts General Laws Chapter 40, Section 13E.

BACKGROUND: *The Town established a Special Education Reserve Fund under Massachusetts General Laws Chapter 40, Section 13E, with a vote of Town Meeting under Article 21 of the FY18 Spring Town Meeting. The current balance is* ***$3,659.25 (as of 9/18/26).***

Section 13E allows the fund to be used, without further appropriation, for unanticipated or unbudgeted costs of special education, out-of-district tuition, or transportation. Money can leave the fund only after a majority vote by both the School Committee and the Select Board.

Special education costs can vary from year to year based on changes in student needs, out-of-district placements, transportation, specialized services, and other legally required educational supports.
The proposed $400,000 transfer would strengthen this reserve without increasing the tax levy. It would also recognize an improvement in the Commonwealth's FY27 education aid that occurred after the school's budget planning process.

The requested transfer would therefore provide a meaningful investment in the financial stability of the Winchester Public Schools while preserving the Town's ability to respond to future special education needs without relying on emergency budget reductions or additional taxation.

Majority Vote Required